

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Thermo KeyTeck, LLC

Vendor City/State: Tewsbury, Massachusetts

Cage: 47DW3

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

Gold Level Maintenance Plan on a 1152 channel high pin count ESD Test System
Annual calibration, 2 emergency repair visits, parts, travel, phone support
POP: 7/1/25 - 6/30/26

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)



A. ONLY ONE RESPONSIBLE SOURCE



B. BRAND NAME



C. UNUSUAL AND COMPELLING URGENCY

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. **OTHER REASONS.** Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

This ESD Tester System was purchased from Thermo KeyTek, LLC on a DLA contract SPE8EJ21D0020/SPE8EL23F13M7. Thermo KeyTek is the OEM of this equipment. They are the only source who has access to all of the schematics and maintenance documentation required for proper service of the instrument.

If this calibration and maintenance is not purchased from the OEM, calibration, repairs and maintenance will not be able to return the system to OEM specifications at the time of purchase. Modifications and repairs made by an unauthorized source could make future repairs and support from the OEM not possible. These issues could result in a loss of the capability or require procurement of a new instrument.

The OEM is the only authorized technical representative for the instrument, and is the only one who has access to proprietary information needed for the service and repair. If this source is not used it would cost the government

months due to down time caused by an uncalibrated piece of equipment. This equipment has a big workload and the downtime would have severe impacts on our testing for our customers.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge



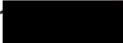
Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

WESSEL.DANIELE
MARIE.  Digitally signed by
WESSEL.DANIELE.MARIE. 
Date: 2025.04.11 10:58:24 -04'00'

Contracting Officer Signature

Name (Printed) / Phone #

Date